

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4076

By: Caldwell (Trey), Kane, and
Hill of the House

and

Hall and Haste of the
Senate

10 COMMITTEE SUBSTITUTE

11 An Act relating to the Oklahoma Department of
12 Commerce; making an appropriation to the Pandemic
13 Relief Primary Source Revolving Fund; identifying
14 source; establishing amounts; providing purposes;
15 requiring and limiting the utilization of funds;
16 authorizing certain memorandums of understanding;
17 limiting scope; prohibiting certain memoranda terms;
18 authorizing and limiting the promulgation of rules
19 and utilization of procedures; requiring certain
20 reports and submissions to certain entities;
21 requiring appearance before certain joint committee;
22 limiting duration of certain requirements; providing
23 determination process; providing for noncodification;
24 and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Pandemic Relief Primary
Source Revolving Fund from any monies not otherwise appropriated

1 from the Statewide Recovery Fund established in Section 255 of Title
2 62 of the Oklahoma Statutes, the sum of Twenty-one Million Six
3 Hundred Forty Thousand Ninety-one Dollars (\$21,640,091.00) or so
4 much thereof as may be necessary for award by the Oklahoma
5 Department of Commerce through grants to enhance industrial parks,
6 airparks, and ports to cover costs related to water, wastewater,
7 sewer, and broadband projects eligible under the provisions of the
8 American Rescue Plan Act of 2021 that support sites or surrounding
9 communities identified by the Department as having such needs prior
10 to the passage of this act and as discussed in the Transportation,
11 Infrastructure, and Rural Development Working Group. Such funds
12 shall be utilized in a manner consistent with the recommendations
13 adopted by the Joint Committee on Pandemic Relief Funding on April
14 15, 2026.

15 SECTION 2. NEW LAW A new section of law not to be
16 codified in the Oklahoma Statutes reads as follows:

17 The Oklahoma Department of Commerce may enter into memorandums
18 of understanding with other agencies of the State of Oklahoma for
19 the auditing, documentation, evaluation, implementation, oversight,
20 reporting, and management of funds and associated efforts related to
21 the appropriations made in this act; provided, that no such
22 memorandum of understanding shall require or include, as an option
23 or condition, the direct or practical transfer or relinquishment of
24 control by the agency appropriated such funds to budget, expend,

1 allocate, and request the distribution of the funds appropriated by
2 this act.

3 SECTION 3. NEW LAW A new section of law not to be
4 codified in the Oklahoma Statutes reads as follows:

5 The Oklahoma Department of Commerce may promulgate rules,
6 utilize existing rules, establish procedures, and utilize existing
7 procedures to implement the provisions of this act; provided, such
8 rules and procedures do not conflict with or impede the provisions
9 of this act.

10 SECTION 4. NEW LAW A new section of law not to be
11 codified in the Oklahoma Statutes reads as follows:

12 A. The Oklahoma Department of Commerce shall:

13 1. Submit to the Chairs of the Joint Committee on Pandemic
14 Relief Funding, or any successor Oklahoma House of Representatives
15 or Oklahoma State Senate legislative committee or joint committee,
16 as designated by the Speaker of the Oklahoma House of
17 Representatives and the President Pro Tempore of the Oklahoma State
18 Senate:

19 a. a written or electronic quarterly report detailing the
20 budgeting, expenditure, and management of all monies
21 appropriated in this act, and

22 b. a copy of all memorandums of understanding and
23 contracts with third parties entered into by the
24 Oklahoma Department of Commerce to facilitate, assist,

1 or administer powers and duties provided to the
2 Department under the provisions of this act; and

3 2. At the Joint Committee on Pandemic Relief Funding's request,
4 appear before the Joint Committee no later than six (6) months after
5 the effective date of this act, and as otherwise requested by the
6 Joint Committee, to provide a status update regarding the
7 implementation of the provisions of this act.

8 B. The provisions of subsection A of this section shall remain
9 applicable for the period of time that monies appropriated under
10 this act are being budgeted, expended, or managed in the state. The
11 ending of such period shall be determined by the State Treasurer,
12 and shall be reported to the Governor, the Speaker of the Oklahoma
13 House of Representatives and the President Pro Tempore of the
14 Oklahoma State Senate.

15 SECTION 5. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.
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20 COMMITTEE REPORT BY: COMMITTEE ON JOINT COMMITTEE ON APPROPRIATIONS
21 AND BUDGET, dated 04/20/2026 - DO PASS, As Amended and Coauthored.
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